

SENATE No. 2679



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October 29, 2025

To the Honorable Senate and House of Representatives,

Pursuant to the provisions of Article II, Section 8, Paragraph 1, Clause (2) of the Amendments to the Constitution, as appearing in Article LXXXIX of said Amendments, I am filing for your consideration the attached legislation entitled “An Act Relative to Elected and Appointed Officials in the Town of Plymouth.”

I am filing this special legislation at the request of the Town of Plymouth’s Select Board.

The legislation ratifies all acts and proceedings of the representative Town Meeting held since March 18, 2020 and all acts and actions taken by Plymouth’s elected and appointed officials since April 11, 2015. The ratification serves to resolve any question that might arise from the fact that certain appointed officials, elected officials, and Town Meeting members did not present themselves to be sworn in within thirty days following their elections, as required by the Town Charter and Bylaws. I understand that it recently came to the attention of the Select Board that 116 appointed officials, 3 elected officials, and 49 Town Meeting members did not present themselves timely to be sworn, potentially calling into question actions taken by these officials dating back to April 2015.

Residents and voters of the Town of Plymouth have been represented by these Town Meeting members, elected officials, and appointed officials for years despite this technical non-compliance. Without this legislation, the Town could face legal challenges to the many decisions of these elected and appointed officials, potentially undermining the work done in good faith by these individuals on behalf of voters. I therefore urge your prompt consideration of this bill.

Respectfully submitted,

Maura T. Healey,
Governor

SENATE No. 2679

Senate, October 30, 2025 -- Message from Her Excellency the Governor (pursuant to the provisions of Article II, Section 8, Paragraph 1, Clause (2) of the Amendments to the Constitution, as appearing in Article LXXXIX of said Amendments) recommending legislation to ratify all acts and proceedings of the representative town meeting held since March 18, 2020 and all acts and actions taken by Plymouth's elected and appointed officials since April 11, 2015.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to elected and appointed officials of the town of Plymouth.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to ensure compliance with the proceedings of representative town meeting of the town of Plymouth, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding the provisions of sections 5-3-1 and 5-3-2 of the charter
2 of the town of Plymouth, or of any other general or special law to the contrary, all acts and
3 proceedings of the representative town meeting of the town of Plymouth held since March 18,
4 2020, and all actions and proceedings in reliance thereon, are hereby ratified, validated and
5 confirmed, notwithstanding that some members of the representative town meeting were not
6 sworn in within 30 days of their election; and, provided further, any representative town meeting
7 member serving as of the effective date of this act who was not sworn in within 30 days of their
8 election may continue to serve in such position until the expiration of their current elected term
9 or their sooner removal, retirement, or resignation.

SECTION 2. Notwithstanding the provisions of section 1 of chapter 123 of the bylaws of the town of Plymouth, or of any other general or special law to the contrary, all acts and actions taken by all elected and appointed officials since April 11, 2015, and all actions and proceedings taken in reliance thereon, are hereby ratified, validated and confirmed notwithstanding that some elected and appointed officials were not sworn in within 30 days of their election; and provided further, any appointed official serving as of the effective date of this act who was not sworn in within 30 days of their appointment may continue to serve in such position until the expiration of their current appointed term or their sooner removal, retirement or resignation.